FIDELITY LIFE ASSURANCE ZIMBABWE LIMITED
versus
THE TAXING OFFICER, CHIPO CHITATA N.O
and
CFI HOLDINGS LIMITED

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE 28 January and 02 February 2026

Mr T Magwaliba for the applicant
Mr A Kadye with Mr T Nyawo, for the second respondent

Review Application

MAMBARA J:

Background

[1] This is an application for review of taxation in terms of rule 72(26) of the High Court Rules, 2021. The applicant, Fidelity Life Assurance Zimbabwe Limited, seeks to set aside the decision of the first respondent (the Taxing Officer, Mrs. Chipo Chitata) made on 1 October 2024, in which a portion of the applicant's legal costs was disallowed. The dispute arises from a bill of costs presented by the applicant following its success in a High Court application for the recusal of an arbitrator. The applicant's bill included advocates' fees totalling US$21,840 for the services of two counsel engaged in that recusal application. Upon taxation, the Taxing Officer allowed only US$7,000 in respect of those fees, effectively taxing off the balance. Aggrieved by this outcome, the applicant now seeks a review of the Taxing Officer's decision.

[2] The essential facts are not in dispute. The applicant and the second respondent, CFI Holdings Limited, were parties to an arbitration involving a claim in excess of US$30 million. In the course of those proceedings, the second respondent applied to the High Court under Case No. HCH 2173/24 for the recusal of the arbitrator Mr. Lloyd Mhishi on grounds of alleged bias. The applicant opposed that recusal. The application was heard by the High

Court, Chitapi J, and judgment was delivered in the applicant's favour – the arbitrator was not removed, and the applicant, as the successful party was awarded costs of the application.

[3] In prosecuting the recusal matter, the applicant had engaged two advocates: Advocate T. R. Mafukidze (a senior counsel) and Advocate M. Tshuma (a junior counsel). They charged a global fee of US$21,840 for their services on the recusal application. The entirety of this fee was initially included as a disbursement in the applicant's party-and-party bill of costs. When the bill was taxed, the Taxing Officer took the view that the use of two counsel was an excessive precaution in an interlocutory application of this nature. In her report, she stated that engaging two advocates was "over-cautious" and that, given the nature of the case, the applicant ought to have engaged only one advocate. Nevertheless, acknowledging that the applicant had actually incurred the expense, she allowed a total of US$7,000 as a reasonable recoverable cost for counsel's fees, taxing off the remainder. It is that reduction – essentially a disallowance of the bulk of the fees for second counsel – which the applicant now contests.

[4] The first respondent (the Taxing Officer) has filed a report explaining her decision, and she abides by the Court's determination. The application is opposed by the second respondent. Mr. Magwaliba appeared for the applicant, and Mr. Kadye for the second respondent. The Court is grateful to counsel for their detailed submissions, both written and oral, which have been taken into account in this judgment.

Submissions by the Applicant

[5] The applicant's central complaint is that the Taxing Officer improperly curtailed the applicant's entitlement to costs by disallowing the fees for one of the advocates. Mr. Magwaliba argued that it was not for the Taxing Officer to effectively decide how many advocates should have been employed in the case – that decision had been the litigant's and implicitly the Court's, when it awarded costs without qualification. He submitted that the High Court and Supreme Court have, in a number of cases, laid down the test applicable to costs for multiple counsel, and that the Taxing Officer failed to apply the correct principles. In support, he cited rule 72(21) and (22) of the High Court Rules 2021, as well as authorities including TA Holdings Ltd v Maceys Consolidated (Pvt) Ltd & Anor 1988 (2) ZLR 453 (SC). These provide, in essence, that the engagement of more than one legal practitioner is permissible, and that a Taxing Officer must allow the fees of two counsel where two counsel were employed, *unless the court awarding costs has ordered otherwise*. At page 456 of the TA Holdings judgment, Manyarara JA explained that the rule (then Rule 311 of the 1971 Rules) *"permits a taxing officer to allow fees reasonably incurred through the employment of*

two advocates", and that where two advocates are instructed, *"the Taxing Officer has no discretion to disallow their fees unless directed otherwise by the court"*. In other words, the fees of both counsels must be allowed, subject only to the Taxing Officer's discretion to tax down any amounts that are unreasonable. The applicant emphasizes that in the present case the court that heard the recusal application made no order limiting the costs to one counsel or otherwise censuring the use of two advocates. Thus, the Taxing Officer ought not to have refused to allow the second counsel's fees on the basis that two advocates were not necessary.

[6] Mr. Magwaliba further submitted that the Taxing Officer misdirected herself by failing to apply the specific considerations set out in rule 72(22) of the 2021 Rules when assessing the reasonableness of the advocates' fees. Rule 72(22) (formerly Rule 311(b) of the old rules) provides a framework for determining the reasonable fee of an additional legal practitioner in cases where more than one is employed. These considerations typically include the complexity of the matter, the amount or stake involved, the volume of work done by each counsel, the experience or seniority of counsel, and any other factors relevant to the necessity or propriety of engaging extra counsel. It was argued that the Taxing Officer's terse determination – resting solely on a perceived "over-cautiousness" – betrayed no reference to these factors, rendering her decision arbitrary, whimsical, and a "thumb-suck" not supported by law or reason. In particular, the Taxing Officer made no specific finding that any item of work charged by the advocates was excessive or unnecessary; instead, she rejected the fees wholesale on the abstract view that one advocate should have sufficed. According to the applicant, this constituted an improper exercise of discretion.

[7] The applicant also attacked the Taxing Officer's methodology. Counsel submitted that when two counsel are employed, the proper approach is to consider the global fee and then, if necessary, apportion it or examine the contributions of each counsel within that total. In the present case, it was argued, the Taxing Officer did the reverse: she first disallowed the senior advocate's fee entirely on the premise that his involvement was unnecessary and then severely truncated the junior's fee, arriving at an arbitrary figure of US$7,000. This piecemeal taxation, the applicant contends, was not in accordance with established practice or the demands of fairness.

[8] Moreover, the applicant insists that the engagement of two counsel was fully justified in the circumstances of the case. The matter being litigated – an arbitral recusal – was said to be of significant complexity and importance. It was intertwined with an underlying dispute valued at over US$30 million, and involved serious allegations of bias against the arbitrator

which could have had far-reaching consequences for the applicant's interests. The application generated a substantial record (some 581 pages of pleadings and annexures) which, in the applicant's view, reflected the detailed nature of the issues to be addressed. Engaging senior and junior counsel ensured that the applicant's case was comprehensively prepared and argued. The two counsels played complementary roles one being senior, the other junior, with no duplication of effort in their work. Given this, the applicant submits that the total fee of US$21,840 was reasonable and ought to have been allowed in full. The Taxing Officer's contrary conclusion – that two counsel were not necessary – is said to be a manifest error in judgment.

[9] The applicant buttressed its position by reference to comparative case law. In Zimbuild *Property Investments* (*Pvt) Ltd* v *Mhurai* (HH 43-20), a single counsel's fee of US$20,000 was allowed as reasonable in a civil dispute involving around US$4 million. By analogy, the applicant argues, a fee of US$21,840 for two counsel in a matter touching a US$30 million stake cannot be deemed excessive. The applicant also pointed out that the allegations made in the recusal application were grave and required a robust response to protect its interests and the integrity of the arbitration. Indeed, in a subsequent judgment related to the arbitration, Chitapi J is said to have acknowledged the seriousness and complexity of the issues ventilated in the recusal proceedings. In sum, the applicant contends that it was reasonable to engage two counsels as a precaution, and that having been forced to do so by the nature of the second respondent's attack on the arbitrator, the applicant should not be penalized in costs for that choice.

[10] In the applicant's view, the Taxing Officer's decision was so out of line with the foregoing principles and facts as to be "grossly unreasonable." Mr. Magwaliba invoked the common-law standard for reviewing a taxation: if the Taxing Officer has made an error of principle or a significant misdirection, or if the result is plainly inequitable, the court should intervene. He cited the recent Supreme Court decision in Mazarire v Taxing Officer & Anor SC 87/23, which restated that a court may interfere on review if (a) the Taxing Officer was grossly unreasonable or clearly misdirected on a point of law/principle, or (b) the Taxing Officer was clearly wrong in her conclusion on any item. In the present case, it is submitted, the Taxing Officer both misdirected herself on principle (by effectively disallowing second counsel's fees contrary to rule 72(22)) and reached a patently unreasonable result (by slashing a justified fee of US$21k down to US$7k without sound basis). On either score, the applicant argues that this Court is obliged to set aside the decision and substitute it with a

proper taxation of the advocates' fees – which, by the applicant's reckoning, means allowing the full US$21,840 as claimed less the fees that had been charged for the main matter.

Submissions by the Second Respondent

[11] The second respondent, opposing the application, maintains that the Taxing Officer acted within the bounds of her discretion and in accordance with the governing rules. Mr. Kadye, for the second respondent, submits that the question at the heart of this review is whether the advocates' fees in issue were reasonably incurred so as to be properly claimable against the losing party. It is common ground that fees paid to advocates by a litigant's legal practitioner count as *"disbursements"* and are subject to taxation in terms of rule 72(8)(a) of the High Court Rules, 2021. The mere fact that the applicant actually paid US$21,840 to its advocates does not automatically entitle it to recoup that entire sum from the second respondent. Under rule 72(3), the Taxing Officer is enjoined to allow only such costs as are necessary or proper for the attainment of justice or for defending the party's rights, and to disallow any costs incurred through over-caution, negligence, or other improper conduct. In the second respondent's view, the applicant's engagement of two counsel for the recusal application was exactly the kind of "over-caution" that the rules envision should not be foisted upon the losing party. It was an extravagant and unnecessary expenditure in the context of a fairly straightforward interlocutory matter.

[12] Counsel for the second respondent characterized the recusal application as an ancillary sideshow, procedurally a simple court application, and substantively a relatively narrow issue. He argued that, by its nature, a recusal application is *"frankly a conversation between the trial officer and the party seeking such recusal"*. The essential question is whether the judicial officer (or arbitrator, in this case) should step down due to perceived bias – a question that primarily concerns the applicant for recusal and the impartiality of the officer. The other party (here, Fidelity Life, the applicant in this review) is not obliged even to oppose such an application; it may do so to protect its interest in having the arbitration continue, but it is *"purely elective for [the] other party to participate"*. Thus, the second respondent contends, the applicant was not a primary litigant in the recusal contest, in the sense that the real dispute was between the second respondent and the arbitrator over the latter's perceived fitness to continue. The applicant's decision to enter that fray with a full battery of legal

firepower (senior and junior counsel) is viewed by the second respondent as an "undue fervency and ardour" on the applicant's part – effectively, the applicant went *above and beyond* what was necessary to protect its rights.

[13] The second respondent points out that the recusal application, regardless of the serious allegations traded, had no bearing on the ultimate merits of the US$30 million dispute. It was an interlocutory proceeding; win or lose, the arbitration would still determine the substantive rights and liabilities of the parties in due course. By contrast, in cases like Zimbuild (cited by the applicant), the fees allowed were for counsel engaged in the main cause of action – matters directly affecting the final outcome. The second respondent submits that it is misleading to draw comparisons between fees incurred in pursuing or defending a principal claim and fees incurred in a tangential skirmish such as a recusal application. In the latter, the stakes, while not trivial, are distinctly lower: no damages or substantive relief is awarded or denied, and the matter typically involves applying established legal principles of bias to a discrete set of facts. Therefore, the retention of two counsel in such a scenario was, in the second respondent's view, unjustified.

[14] Mr. Kadye also highlighted that the applicant's bill of costs initially included certain charges that were plainly improper, such as fees unrelated to the recusal application work done in the main arbitration. The applicant ultimately conceded these and they were excised from the bill. This concession is seized upon by the second respondent as evidence that the applicant's approach to its costs was overreaching from the start. It suggests that the applicant attempted to recover more than what was properly attributable to the recusal matter, and only withdrew those excesses when challenged. In light of that, the Taxing Officer's cautious scrutiny of the advocates' fees was not misplaced. In fact, the second respondent argues, the applicant's own heads of argument tacitly acknowledge that the complexity of the main arbitration should not have been a factor in the recusal costs – undermining the applicant's earlier stance that the magnitude of the overall dispute justified two counsel for the recusal application. The second respondent submits that the applicant cannot approbate and reprobate: having admitted that some charges were wrong and that the main case's complexity is a different consideration, the applicant's insistence that two counsel were necessary for the recusal ring hollow.

[15] On the legal standards applicable, the second respondent relies on the well-established principle that a judge will not interfere with a Taxing Officer's exercise of discretion unless that discretion was exercised improperly or unreasonably. A mere difference of opinion as to

what might be a fair allowance is not enough. The decision must be shown to be based on a wrong principle, or to be so unreasonable as to be clearly wrong. Mr. Kadye cited *Mazarire* v *Taxing Officer* & Anor SC 87/23, which outlines that the court may intervene on review only on two broad grounds: (1) if there is a materially unreasonable or irrational ruling (akin to the common-law review ground), or (2) if the Taxing Officer is clearly wrong on the facts or law of a particular item. He also referred to the case of *Kwaramba* v *Bhunu* N.O. 2012 (2) ZLR 358 (S), reinforcing that "clear error" is the threshold for interference. In the present matter, the second respondent contends that the applicant has failed to meet this threshold. The Taxing Officer properly directed her mind to the question of necessity for two counsel in the recusal application, which was the crux of the issue. She reached a conclusion that two counsel were not reasonably necessary, and accordingly adjusted the fees to what she deemed reasonable for one counsel's work. This decision was squarely within the ambit of her discretion under rule 72(3) and the applicable Costs Regulations (SI 220/20). In the absence of any evidence that she ignored a relevant factor, considered an irrelevant factor, or otherwise committed a legal blunder, the second respondent urges that her decision must be upheld. The second respondent submits that the applicant's real gripe is simply that it wanted a higher figure, which is not a legitimate basis for a review.

[16] In summary, the second respondent's position is that the Taxing Officer struck a fair balance in allowing US$7,000 – a figure which implicitly recognizes some of the work done by both advocates, but trims off the excess. This, they argue, ensured that the applicant received indemnity for costs reasonably incurred, without burdening the losing party with costs deemed excessive or unnecessary. There is, in the second respondent's view, no cause for this Court to second-guess that balanced determination.

Analysis

[17] I have carefully considered the submissions of the parties, the Registrar's report, and the pertinent legal authorities. It is common cause that this Court's role on a taxation review is a limited one. The Taxing Officer is vested with a discretionary authority to assess costs, and the Court will not readily interfere with such discretion. The standard for interference is whether the Taxing Officer committed an error in principle, or was so clearly wrong or grossly unreasonable in her determination that intervention is warranted. Put differently, it must be shown that the Taxing Officer's ruling falls outside the generous ambit within which reasonable disagreement is permissible. Bearing this in mind, the focus here is on the Taxing Officer's handling of the advocates' fees: did she err in principle by disallowing fees for two

counsel, or was the amount she allowed (US$7,000) so incommensurate with a reasonable fee as to be clearly wrong?

[18] The applicant's challenge raises an apparent tension between two aspects of the law of costs. On one hand, rule 72(21) and (22) (and the jurisprudence exemplified by TA Holdings Ltd v Maceys and related cases) affirm that a successful party *may recover the fees of more than one counsel* if more than one was reasonably employed. The rule essentially acknowledges that some cases warrant the engagement of two (or more) legal practitioners, and in those cases the losing party should bear the resulting costs, unless the trial court has expressly decreed otherwise. On the other hand, the general principle per rule 72(3) is that only costs which were reasonably incurred are recoverable. Even where two counsel are employed, their combined fees must still pass the test of reasonableness and necessity in the context of the case. The Taxing Officer has not only the right but the duty to disallow any part of those fees that appears to have been unnecessarily incurred, or to reduce any charges that are excessive for the work involved. The reconciliation of these principles is, in my view, straightforward: a Taxing Officer cannot outright forbid the recovery of a second counsel's fees on the mere ground that two counsel were used for the rules permit it, but she can and should scrutinize whether the participation of that second counsel added any *necessary value* such as to justify shifting the expense to the other side. If the second counsel's involvement was superfluous or the fees charged disproportionate, the Taxing Officer is entitled to refuse those costs as unreasonable, either in whole or in part.

[19] In the present case, the Taxing Officer did not entirely disallow the idea of two counsel's fees – she did not say, for instance, that *no* fee for the second advocate could be claimed. Rather, she considered the *extent* to which that fee should be borne by the losing party. Her reasoning, in concise form, was that engaging two advocates for this recusal application was an act of over-caution, and therefore only a portion of the resulting cost was deemed recoverable. She allowed what she considered a reasonable figure (US$7,000) and disallowed the rest. Implicit in that decision is the finding that one advocate could have handled the matter, and thus the additional expenditure on a second advocate – beyond the $7,000 already allowed – was not *necessary or proper for the attainment of justice* in this case. This approach finds support in rule 72(3), which, as noted, directs the Taxing Officer to disallow costs arising from excessive caution. If ever there was an example of "excessive caution" in litigation, the Taxing Officer evidently believed the use of two counsel here was it.

[20] The applicant strenuously argues that the Taxing Officer's view was wrong, and that the matter did, in fact, warrant two counsel. However, it is important to delineate the scope of this review. The question is not whether the judges of this Court, or indeed another Taxing Officer, might have been persuaded to allow a higher amount or take a more indulgent view of the second counsel's involvement. The question is whether the decision actually made by the Taxing Officer is so erroneous as to amount to a misdirection, or is one that no reasonable taxing officer properly applying her mind could have arrived at. In my assessment, that is not the case here.

[21] To begin with, the nature of the recusal application must be kept in perspective. It was an interlocutory application – essentially a procedural challenge to the arbitration proceedings, not a determination of the substantive rights of the parties. It neither conferred an immediate monetary award nor finally disposed of the main dispute. While it is true that the sums at stake in the overall dispute were very high (over US$30 million), the recusal application itself was a self-contained inquiry into the arbitrator's perceived impartiality. The issues revolved around principles of bias and procedural fairness, which, though significant, are relatively well-trodden in law. I agree with the second respondent's submission that a recusal application is not the kind of matter that typically bristles with complex legal or factual questions requiring extensive research or multiple legal minds. It is often focused on whether certain facts, usually allegations of conflict of interest, prejudicial conduct, etc., would lead a reasonable person to apprehend bias on the part of the adjudicator. That assessment is largely factual and evaluative, guided by established legal tests. It is *sui generis* in nature – in a sense, as was vividly submitted, "a conversation between the trial officer and the party seeking recusal". The other party's role is essentially optional; a party may choose to oppose a recusal to support the continued mandate of the adjudicator, but the ultimate decision often lies, in the first instance, with the adjudicator's conscience, and thereafter with the court if the matter is taken on review. In short, a recusal application is generally not a multi-faceted, technical case that would justify the combined efforts of senior and junior counsel.

[22] In the present matter, the applicant's involvement in the recusal application, while understandable (since it had an interest in keeping the arbitrator who had been handling the case), was ultimately defensive in nature. The applicant was essentially supporting the arbitrator's position against the second respondent's accusations. However, no matter how grave those accusations were, the decision to recuse or not recuse lay in the end with the

arbitrator (subject to the court's supervision on review). No amount of advocacy, however brilliant or forceful, could guarantee a particular outcome; the arbitrator would either be persuaded to step down voluntarily or not, and the court would either find objective bias or not. The point here is that the applicant's engagement of a senior advocate in addition to a competent junior did not appreciably alter the dynamics of that decision-making process. The issues were not of such complexity that a senior's intellectual horsepower was indispensable. Indeed, the High Court per Chitapi J saw fit to decide the matter in the applicant's favour without remarking that the arguments were novel or extraordinarily difficult – and notably, without awarding any special costs such as costs of two counsel. Had the court a quo been of the view that the matter justified two counsel, one might have expected a specific allowance or comment to that effect in the judgment or order. Its silence on that score is telling.

[23] The applicant placed great emphasis on the volume of the record (over 500 pages) as indicative of a complex matter. This is not necessarily so. The bulk of that record, it turns out, was comprised of materials carried over from the arbitral proceedings – the pleadings and evidence that were before the arbitrator, which were annexed to the recusal application for context. Including voluminous annexures does not by itself make the recusal application complex; it simply means the court was given background material. The actual dispute before the court remained whether the arbitrator should be removed for bias. Thus, I am not convinced that the thickness of the file correlates with the necessity for two counsel. What matters is the substance of the work, not the number of pages filed.

[24] The applicant also points to the seriousness of the allegations made against it (and the arbitrator) by the second respondent, arguing that it *had* to pull out all the stops to clear its name and keep the arbitrator in place. There is no denying that the allegations were serious – assertions of impropriety or bias always are. But preparing to refute serious allegations is not the same as navigating complex legal terrain. A single experienced counsel with the support of instructing attorneys could quite adequately marshal the facts and law required to rebut the claims of bias. The engagement of a second counsel, in this Court's view, amounted to belt and braces – an extra layer of assurance for the applicant's comfort rather than a demonstrable necessity. The applicant was certainly entitled to hire as many lawyers as it wished; what is at issue is whether the losing opponent can be made to pay for that choice. As a general rule, the costs indemnity is for reasonable litigation expenses, not for every conceivable safeguard a paranoid litigant might employ. In the apt words of an English judge (Bowen LJ), *"the successful litigant is only entitled to indemnity for costs reasonably*

incurred by him, not costs lavishly or recklessly incurred." (see *The London Scottish Benefit Society v Chorley, Crawford and Chester* (1884) 13 QBD 872 (CA) @ 877) .The spirit of our rules is much the same: full indemnity for every expenditure reasonably incurred by the party in relation to his claim or defence, but no indemnity for that which was excessive or unnecessary.

[25] Taking all of this into account, I find that the Taxing Officer's conclusion that two counsel were not necessary – and that the second respondent should not bear the full brunt of that extra cost – was a reasonable one. It is supported by the general principle in rule 72(3) and by common sense notions of proportionality in litigation. The applicant was, to put it bluntly, over-cautious. It chose to employ a senior advocate where a single junior, who by all indications is a qualified legal practitioner in his own right, would have sufficed. The applicant might have felt more secure having two counsel at the podium, but that peace of mind came at a price – a price that the Taxing Officer correctly decided should not be wholly passed on to the adversary. I do not accept the contention that the Taxing Officer ignored the factors in rule 72(22). In substance, she considered "the nature of the case" – by implication its complexity (or lack thereof), its significance, and the work involved – and from that she deduced that one counsel was enough. That inherently covers considerations of complexity, difficulty, and the need (or not) for special expertise. It is true that her report is brief, but brevity is not tantamount to arbitrariness. One can discern the logic underpinning her decision: this was a routine interlocutory application as opposed to a ground-breaking or highly intricate case and thus did not warrant two sets of advocate's fees.

[26] The applicant's reliance on *TA Holdings* v *Maceys* and related cases is not misplaced on the law – indeed, I acknowledge that if two counsel are reasonably employed, their fees should ordinarily be allowed. But that principle does not help the applicant unless it can first surmount the hurdle of showing that engaging two counsel was reasonable in this instance. That is a fact-sensitive inquiry. The Taxing Officer answered that inquiry in the negative. Having perused the record and considered the parties' arguments, I am not persuaded that her answer was wrong. On the contrary, it strikes me as an appropriate exercise of her discretion. The authorities cited by the applicant themselves recognize that the Taxing Master *"must allow such fees, subject to the discretion to tax down unreasonable amounts"*. In other words, even where two counsel are employed, the quantum is not sacrosanct; it remains subject to moderation. Here, what the Taxing Officer did was essentially to tax down the total fee from US$21,840 to US$7,000, which implies she found the balance of $14,840 to be unreasonable

in the context. Is that level of reduction so outrageous as to be unsustainable? I think not. It left the applicant with $7,000 towards its advocates' fees for an interlocutory matter – a not inconsiderable sum in its own right (indeed, comparable to what one might expect for a day's defended court application of this nature on the ordinary scale). The second respondent, for its part, likely incurred its own legal expenses in opposing the recusal, and those were probably of a similar order of magnitude. Viewed from a broad perspective, allowing $7,000 in advocates' fees achieves a *"just balance"* between ensuring the applicant isn't out-of-pocket for a reasonable cost of opposing the recusal, and protecting the second respondent from an excessive costs burden stemming from the applicant's tactical choices.

[27] I am also mindful that the applicant conceded certain errors in its bill (like including fees for work outside the recusal application). While those were corrected, the very fact that the applicant initially over-claimed in some respects may have justifiably led the Taxing Officer to scrutinize the rest of the bill – particularly the large counsel fees – with a critical eye. The applicant argued that the Taxing Officer should have considered the complexity of the main arbitration in judging the fee; but later the applicant rightly abandoned that line, acknowledging that costs must be assessed relative to the particular proceedings to which they pertain. The main case's complexity is neither here nor there when taxing costs for the recusal application. This retreat by the applicant essentially undercuts its own suggestion that the recusal matter was as involved as the main dispute. It was not.

[28] Finally, I address the applicant's invocation of the Zimbuild case. The comparison is not apt. In Zimbuild, the High Court permitted a single counsel's fee of US$20,000 in a *substantive* civil dispute of significant value. That was a fee for conducting the main trial or application – the core of the litigation. Here we are dealing with a collateral issue. It would set a dangerous precedent to hold that because $20k was allowed in one case on its merits, a similar or higher amount must ipso facto be allowed in any other case that happens to involve a large sum in the background. Each case must be evaluated on its own facts. To my mind, the only lesson from Zimbuild is that our courts will allow high fees where they are justified by the work done and the importance of the case. In this instance, the Taxing Officer judged, correctly, in my view, that the work done did not justify the fee claimed. The situation is more akin to a party deploying a Rolls-Royce to do the work of a Toyota – while one may admire the zeal, one cannot expect to charge the opposing party for the premium unleaded fuel consumed.

[29] In sum, the applicant has not demonstrated any reviewable irregularity in the Taxing

Officer's decision. The decision was not based on any wrong principle of law; on the contrary, it applied the fundamental principle of reasonableness enshrined in rule 72(3). The outcome reached – allowing US$7,000 of the advocates' fees – was, in the circumstances, within the range of what a reasonable taxing officer could determine. I am unable to say that Ms. Chitata's decision was "grossly unreasonable" or that she was "clearly wrong." Indeed, I find her decision to be justified and fair. The applicant took a strategic choice to engage two counsels in an interlocutory application, a choice that was within its rights but beyond what was strictly necessary. The consequence in costs is that the applicant must bear the luxury portion of that choice on its own. The losing party, second respondent, is properly charged with only the reasonable costs, not the deluxe costs.

Disposition

[30] Having found no merit in the application for review, the result is that the Taxing Officer's decision stands undisturbed. The application will be dismissed. As to costs of this review: these normally follow the result. The second respondent has successfully defended the Taxing Officer's decision and is entitled to its costs. There is no basis for a departure from the ordinary rule. The applicant in fact had sought that each party bear its own costs in the event it succeeded, but having failed, it cannot complain if it is made to pay the winner's costs.

[31] Accordingly, IT IS ORDERED THAT:

1. The application for review of the Taxing Officer's decision be and is hereby dismissed.
2. The applicant shall bear the costs of this application

MAMBARA J……

Dube, Manikai & Hwacha, applicants's legal practitioners
Nyawo Ruzive Attorneys, second respondent's legal practitioners